

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX-----X
Edwin Morales,

Plaintiff,

-against-

City of New York, New York City Police Department,
Police Officer Catherine, Klyde, Shield 19192 of SSTF
and New York City Police Officers John Doe,Defendants,
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Index Number:

Date Purchased:

Date Filed:

SUMMONS

Plaintiff's residence is:

226 West Tremont Avenue
Bronx, NY 10453

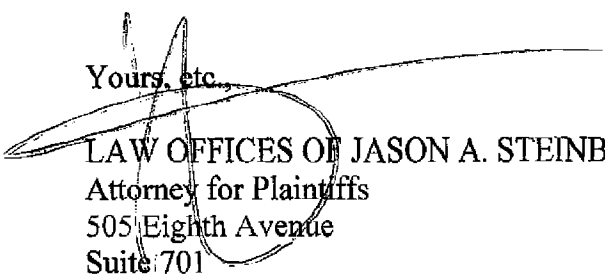
TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to Answer the Verified Complaint in this action and serve a copy of your answer, or if the Verified Complaint is not served with this Summons to serve a notice of Appearance on the Plaintiffs attorney within twenty (20) days after the service of this Summons, exclusive of the day of service (or within thirty (30) days after the service is complete if this Summons is not personally delivered to you within the State of New York) and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Verified Complaint.

The basis of venue designated is that the cause of action arose in Bronx County.

Dated: November 4, 2020
New York, NY

Yours, etc.,



LAW OFFICES OF JASON A. STEINBERGER, LLC
Attorney for Plaintiffs
505 Eighth Avenue
Suite 701
New York, NY 10021
(646) 256-1007

To: City of New York

New York City Police Department

Police Officer Catherine, Klyde, Shield 19192 of SSTF

New York City Police Officers John Doe

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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Edwin Morales,

Plaintiffs

-against-

City of New York, New York City Police Department,
Police Officer Catherine, Klyde, Shield 19192 of SSTF
and New York City Police Officers John Doe,

Defendants
-----X

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: VERIFIED COMPLAINT
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Plaintiff, by and through his attorney, JASON A. STEINBERGER, Esq, for his complaint,
alleges upon information and belief as follows:

STATEMENT OF FACTS

1. That at all times hereinafter mentioned, Plaintiff Edwin Morales (hereinafter referred to as "MORALES") is a resident of New York County, State of New York.
2. That at all times hereinafter mentioned, Police Officer Catherin Klyde, Shield 19192 of SSTF (hereinafter referred to as "KLYDE") was employed by the New York City Police Department.
3. That at all times hereinafter mentioned, the New York City Police Officers John Doe (hereinafter referred to as "DOES") were employed by the New York City Police Department.
4. That at all times hereinafter mentioned, Defendant City of New York, is a municipal corporation organized and existing under the laws of the State of New York, with a principal place of business located at 1 Centre Street, County of New York State of New York.

5. That at all times hereinafter mentioned, Defendant New York City Police Department, is an agency created and maintained by the above municipal government.
6. On or about September 9, 2019 notice required by Municipal Law 50-E was given to City of New York, by personal service. Said notice set forth the facts underlying Plaintiffs' claim against the City of New York, and its agents and employees. To date, no answer has been received by Plaintiff and no compensation has been offered by the City of New York.
7. That on or about October 14, 2020 a hearing required by Municipal Law 50-H was conducted. At said hearing, Plaintiff testified and set forth the facts underlying Plaintiffs' claim against the City of New York and its agents and employees. To date, no answer has been received by Plaintiff and no compensation has been offered by the City of New York in response to this claim, and more than thirty (30) days have elapsed.
8. That at all times before June 26, 2019, Plaintiff was the owner to 3 dogs named Pepe, Blanca and Kristi.
9. That at not time during his ownership of the dogs did Plaintiff engage in behavior with the dogs that was criminal in nature.
10. That on or about June 26, 2019 at approximately 10:00 AM in the vicinity of 226 West Tremont Avenue, Bronx, NY, KLYDE and DOES went to Plaintiff's home, handcuffed him and arrested him.
11. That at no time did Plaintiff's living conditions rise to the level of a crime or violation.
12. That after Plaintiff was arrested, he was transported to the 44 precinct.
13. That while Plaintiff was held in the 44 precinct he was confined to a cell with numerous other male prisoners.

14. That while he was in the 44 precinct, Plaintiff was attacked, in that other inmates slammed Plaintiff's face into metal bars causing Plaintiff to suffer a broken nose, bruising, swelling, pain and scarring to his nose and face.
15. That at no time did KLYDE or DOES protect Plaintiff from the other inmates.
16. That after being held in the 44 precinct for several hours, he was transported to Bronx County Central Booking, located at 265 East 161 Street, Bronx, NY.
17. That while Plaintiff was held in Bronx County Central Booking, he was confined to a cell with numerous other male prisoners.
18. That on or about June 28, 2019 Plaintiff was arraigned on docket 2019BX017521 wherein he was charged with violating Agriculture and Markets Law § 356, Failure to Provide Proper Food and Drink to Impounded Animal and Agriculture and Markets Law § 355, Abandonment of Animals.
19. That at the arraignment, Plaintiff was released and ordered to return to court.
20. That on and between June 28, 2019 and December 30, 2019 Plaintiff made numerous court appearances until the case against Plaintiff was dismissed upon application of the Office of the Bronx County District Attorney.

AS AND FOR A FIRST CAUSE OF ACTION AGAINST DEFENDANTS

21. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 20, as if more fully stated herein at length.
22. That Defendants acted with actual malice toward Plaintiff and with willful and wanton indifference to and deliberate disregard for the statutory and constitutional rights of the Plaintiff.
23. That the actions of the Defendants constituted unreasonable deprivation of liberty without due process of law.

24. That as a result of the actions of Defendants, Plaintiff was seriously injured due to the intentional manner in which Defendants, their agents, servants, employees and/or licensees treated Plaintiff and he was wounded, suffered, still suffers, and will continue to suffer for some time great physical pain and great bodily injuries and became sick, sore, lame and disabled and so remained for a considerable length of time.

25. That as a result of the actions by Defendants, Plaintiff was traumatized and fears his physical safety when he sees and encounters members of the New York City Police Department from that day and onward.

26. That as a result of the Defendants' actions, Plaintiff has been unable to sleep.

27. That as a result of the Defendants' actions, Plaintiff missed several days from work.

28. That as a result of the Defendants' actions, Plaintiff's dog, Pepe, was removed from him and killed while at animal shelter.

29. That as a result of the Defendants' actions, Plaintiff's dog, Blanca, was removed from him and while in the custody of an animal shelter, was struck by a car while on a walk wherein Blanca broke her hip and leg.

30. That as a result of the Defendants' actions, Plaintiff's dog, Kristi, was removed him and not returned to him until the criminal case was dismissed.

31. That as a result of the Defendants' actions Plaintiff sustained damage to his person in the sum within the jurisdiction of the Supreme Court and in excess of all inferior courts.

AS AND FOR A SECOND CAUSE OF ACTION AGAINST DEFENDANTS

32. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 31, as if more fully stated herein at length.

33. The intentional verbal abuse, false arrest, false imprisonment and malicious prosecution by Defendants violated the rights of the Plaintiff as guaranteed by the Fourth, Fifth and Eighth Amendments to the United States Constitution, as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable.

34. Defendants having no lawful authority to arrest Plaintiff, did, nevertheless, unlawfully arrest Plaintiff with actual malice toward him and with willful and wanton indifference to and deliberate disregard for his constitutional rights. Thus Plaintiff is entitled to both compensatory and exemplary damages.

AS AND FOR A THIRD CAUSE OF ACTION AGAINST DEFENDANTS

35. Plaintiff repeats, reiterates and realleges the allegations contained in paragraphs 1 through 34, as if more fully stated herein at length.

36. Defendants conspired to violate Plaintiff's statutory civil rights in violation of 42 U.S.C. sec.1983, et al as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable. Thus Plaintiff is entitled to both compensatory and exemplary damages, as well as attorney's fees.

AS AND FOR A FOURTH CAUSE OF ACTION AGAINST DEFENDANTS

37. Plaintiff repeats, reiterates and realleges the allegations contained in paragraphs 1 through 36, as if more fully stated herein at length.

38. Plaintiff was verbally abused, falsely arrested, falsely imprisoned and maliciously prosecuted by Defendants in a manner that was extreme, outrageous and unjustified and caused

Plaintiff to suffer physical and severe emotional distress for which the Defendants are individually liable. The verbal abuse, false arrest, false imprisonment and malicious prosecution on and of Plaintiff by Defendants were unjustified and done with actual malice and wanton indifference to and deliberate disregard for human life and the rights of Plaintiff. Plaintiff is thus entitled to compensatory and exemplary damages.

39. That during the pendency of the case, Defendants maliciously prosecuted Plaintiff by continuing to cooperate in a prosecution when Plaintiff should never have been arrested. Plaintiff is thus entitled to compensatory and exemplary damages.

**AS AND FOR A FIFTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK AND
NEW YORK CITY POLICE DEPARTMENT**

40. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 39, as if more fully stated herein at length.

41. At all times pertinent hereto, KLYDE and DOES were acting within the scope of their employment as officers of the New York City Police Department and City of New York.

42. The City of New York and New York City Police Department are each liable for compensatory damages under the doctrine of respondeat superior for the intentional torts that KLYDE and DOES committed within the scope of their employment.

**AS AND FOR A SIXTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK AND
NEW YORK CITY POLICE DEPARTMENT**

43. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 42, as if more fully stated herein at length.

44. The City of New York and New York City Police Department's failure to provide adequate training and supervision to KLYDE and DOES constitutes a willful and wanton indifference and deliberate disregard for human life and the rights of private citizens, including Plaintiff. Plaintiff is thus entitled to compensatory exemplary damages.

45. That a result of KLYDE's failure to know the law, she falsely arrested and imprisoned Plaintiff when his conduct was not in fact criminal in nature. Plaintiff is thus entitled to compensatory exemplary damages.

**AS AND FOR A SEVENTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK
AND NEW YORK CITY POLICE DEPARTMENT**

46. Plaintiff repeats, reiterates and realleges the allegations contained in paragraphs 1 through 45 as if more fully stated herein at length.

47. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted and tolerated the unreasonable detention of Plaintiff.

48. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted the wanton indifference to and deliberate disregard for the statutory and constitutional rights of Plaintiff.

WHEREFORE, Plaintiffs each demand judgment against the Defendants as follows:

On the first cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts;

On the second cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts, together with the additional exemplary sum within the jurisdiction of

this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

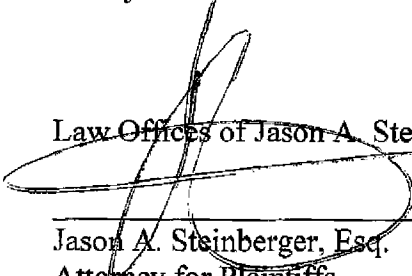
On the third cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

On the fourth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the wanton and willful nature of the Defendants actions;

On the fifth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts

On the sixth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts.

On the seventh cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts.

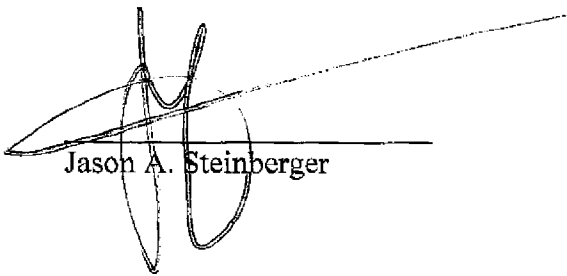

~~Law Offices of Jason A. Steinberger, LLC~~

Jason A. Steinberger, Esq.
Attorney for Plaintiffs
505 Eighth Avenue
Suite 701
New York, NY 10021
(646) 256-1007

STATE OF NEW YORK: COUNTY OF NEW YORK

The undersigned, an attorney admitted to practice in the State of New York, under penalties of perjury, affirms the following to be true: Affirmant has read the foregoing Complaint and the contents thereof; the same is true to affirmant's own knowledge, except as to matters therein stated to be alleged on information and belief and as to those matters affirmant believes it to be true; and the reason this verification is made by affirmant and not by the plaintiff is because the plaintiff is not within the county in which your affirmant maintains his principal office. The grounds of affirmant's belief as to all matters not stated upon affirmant's knowledge are communications with the plaintiff, review of records and documents within affirmant's possession.

Affirmed: November 4, 2020



Jason A. Steinberger